

Calendar Line # 7
Case Name Keith Lyle vs Ford Motor Company et al
Case No. 24CV449313
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary judgment/adjudication against plaintiff Keith Lyle. Pursuant to California Rule of Court, rule 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> A. <u>FACTUAL BACKGROUND</u> Plaintiff Keith Lyle (“Lyle”) filed a Complaint on October 11, 2024, against defendants Ford Motor Company (“Ford”) and Heritage Ford Inc., seeking claims under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”). According to the Complaint, Plaintiff purchased a 2016 Ford Fusion, vehicle identification number: 3FA6P0SU7GR173049 under warranty (the “Subject Vehicle”). (Complaint, ¶¶ 10-11). Before Plaintiff purchased the vehicle, Ford knew that vehicles had engine defects, electrical defects, hybrid battery defects, among other defects and non-conformities. (<i>Id.</i> at ¶ 15). Plaintiff alleges the following six causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement – concealment. Ford filed the instant motion for motion for summary judgment (“MSJ”)/adjudication (“MSA”) to causes of actions one through four, and six on March 23, 2026 that was accompanied by a proof of service indicating electronic mail service to the plaintiff’s counsel. B. <u>RELEVANT PROCEDURAL BACKGROUND</u> On March 23, 2026, defendant Ford Motor Company filed this Motion for Summary Judgment to the Plaintiff’s Complaint, or, alternatively, Motion for Summary Adjudication (“MSA”) as to plaintiff’s causes of action nos. one through four as the claims are time-barred and the sixth cause of action for fraudulent inducement-concealment as time barred. (Defendant’s motion, p. 2). The motion was accompanied by proof of electronic service on plaintiff’s counsel on that same day. Defendant received a hearing date of November 19, 2026, which was after the July 13, 2026 trial date originally set in this matter. On March 25, 2026, Defendant filed an ex parte application seeking to advance the hearing to Friday June 12, 2026, with a proof of service dated March 24. The Court granted the motion to advance the hearing and continued the trial to January 4, 2027. However, June 12 is a non-motion and calendar day and the Court is unable to hear cases, and the matter was moved to the closest motion date of June 11. Plaintiff’s counsel was served with the defendant’s ex parte application and notice of non-opposition on May 29. Given this posture, although the motion was unopposed, the court continued the motion to August 6, 2026 to allow for proper notice. On June 11, 2026, Defendant electronically served the plaintiff with an amend notice of the August 6, 2026 hearing date. The minute Order from June 11, 2026 also reflects that plaintiff’s counsel was present. The Court has carefully reviewed the Defendant’s notice of motion (totaling 4 pages); memorandum of points of points and authorities (totaling 22 pages); Separate Statement (totaling 42 page); Declaration of Katherine P. Vilchez and Exhibits A-I in support of the defendant’s motion for summary adjudication (totaling 120 pages); Declaration of Erich Kemnitz and attached Exhibits A-B in support of the defendant’s motion (totaling 5 pages); ex parte application to advance the MSA date; Amended Notice for MSA (totaling 3 pages); Notice of Non-opposition to the MSJ (totaling 4 pages); Amended Notice of the August 6, 2026 hearing date (totaling 4 pages); proof of services; and the pleadings.

C. THE MOTION HAS BEEN AND CONTINUES TO BE UNOPPOSED

On June 11, 2026, the Court noted that the motion was unopposed as the plaintiff failed to file opposition papers. The case was continued to this hearing date and proper amended notice in was filed.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 17, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Plaintiff filed an untimely opposition on August 4, 2026.

II. LEGAL STANDARD

MOTION FOR SUMMARY JUDGMENT

Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)).

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850).

“There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. ANALYSIS

Ford moves for MSJ on the plaintiff’s complaint or in the alternative MSA on the plaintiff’s cause of actions one through four and the sixth cause of action.

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855). “[A] defendant cannot simply ‘argue’ that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative ‘showing’ that the plaintiff *cannot* do so.” (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103, *italics original*). When relying on “factually devoid” discovery responses, the defendant must show that “discovery was sufficiently comprehensive, and plaintiffs’ responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their

claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses].” (*Id.* at p. 107 [citing *Scheidig v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

Ford’s first argument that Plaintiff has no evidence demonstrating the existence of a transmission defect is unpersuasive. For purposes of establishing fraud, the fact that a product is still functioning as intended is immaterial because a fraud claim impugns the defendant’s conduct, not the safety or efficacy of the product. (*Khan v. Shiley* (1990) 217 Cal.App.3d 848, 857). Thus, “a manufacturer of a product may be liable for fraud when it conceals material product information from potential users.” (*Id.* at p. 858).

Ford avers that the plaintiff is time barred from bring his claims under causes of actions on through four and six. Defendant emphasizes that the plaintiff failed to file a complaint until nine years after purchasing the Subject Vehicle. (Defendant’s motion, p. 15). As to the sixth cause of action for fraudulent concealment-inducement Ford argues that there are no warranty presentations. Even if there was a tolling, the plaintiff would still be time barred.

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS Ford’s motion for summary judgment. The Court will prepare the Order.